Brazoria County District Court

Cause No. 2024-CV-0029

Joann Norton, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 20, 2024
Plaintiff's counsel:	Rebecca Hernandez, Villa & Dawson LLP

PARTIES

Plaintiff Joann Norton is an individual residing in Texas who was the driver and insured party involved in the collision described below. Defendant is an automobile insurance carrier authorized to tarnsact business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and which may be served through its registered agent for service of process.

FACTS

On August 31, 2023, Plaintiff was lawfully operating a vehicle on a public roadway in League City, Texas, when another vehicle traveling in the opposite direction crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The collision occurred at a low rate of speed, but the impact was sufficient to force Plaintiff's head and neck forward and back. Plaintiff promptly reported the collision to Defendant and submitted a claim for benefits under the applicable coverage. Defendant has not paid the claim in full and has failed to provide a reasonable explanation for its position.

NEGLIGENCE

Defendant owed Plaintiff a duty to investigate the claim promptly and fairly, to evaluate the claim based on a reasonable investigation, and to pay covered benefits once liability became reasonably clear. Defendant breached these duties by delaying its investigation, failing to request necessary information in a timely manner, and refusing to pay amounts that were reasonably clear under the policy. Such conduct violates the Texas Insurance Code and the Texas Deceptive Trade Practices Act.

DAMAGES

As a direct result of the collision, Plaintiff sustained a neck strain that has caused pain, stiffness, headaches, and limited range of motion, requiring medical evaluation and treatment. Plaintiff has incurred medical expenses, lost time from work, and mental anguish. Plaintiff seeks actual damages, statutory penalties, attorney's fees, and interest as allowed by law, in an amount not less than $125,000.00.